

UNIT-VI

Offences under the Cyberspace, Internet in India and Miscellaneous provisions of IT Act and Conclusions:

Chapter 10: Some important offences under the Cyberspace law and the Internet in India

Chapter 11: Other offences under the Information Technology Act in India

Chapter 12: The role of Electronic Evidence and miscellaneous provisions of the IT Act.

Some important offences under the Cyberspace law and the Internet in India

Obscenity and Pornography on Cyberspace:

These days the Internet is very widely used by persons individually and group of persons and companies all over the world.

In the year 1973 chief justice Burger of the US supreme court propounded a Miller test/triple test for determining whether a work is obscene or not. This test faced challenges with online obscenity cases.

They are:

- The average person, enforcing the contemporary *community standards*, would find that work, taken as a whole, appeals to the prurient interest.
- Whether the work depicts or describes, in a *patently offensive* way, sexual conduct specially defined by the applicable state law.
- The work, taken as a whole, short of serious *literary, artistic, political or scientific* value.

The work is considered obscene only if all three conditions are satisfied.

- Under section 67 of IT Act, 2000, any person who publishes or transmits the material in any electronic form which is lascivious or appeals to the prurient interest, imprisonment of 3 years and fine of 5 lakh.
- section 67 of IT Act, 2000 and section 292 of Indian Penal code does not require **mens rea or guilty** mind on the part of the offender to commit the offence.
- Under section 79 of IT amendment act 2008, the network service provider is not to be held liable for any third party information.

Cyber café rules 2011:

-- must maintain log register

--Must be allowed only if they have valid id proof and age greater than 18.

Types of proofs allowed are:

- Identity Card
- Photo Credit Card or Debit Card issued by a bank or post office
- Passport
- Voter Identity Card
- PAN Card issued by Income Tax Authority
- Photo Identity Card issued by the employer or any government agency
- Driving License issued by the appropriate Government.

In case the user does not agree to reveal his or her identity or refuses to the photograph, the Cyber Café shall not allow the user to access any computer resource of the Cyber café.

Cyber Pornography

Under Section 67B of the IT (Amendment) Act 2008:

- publishes or transmits or causes to be published or transmitted in any electronic form
- creates text or digital images, collects, seeks, browses, download advertises, promotes, exchanges or distributes material in any electronic form
- cultivates, entices or induces children to online relationship with one or more children
- facilitates abusing children online

-- on first conviction -5 years of imprisonment and fine up to 10 lakhs

--on second or subsequent conviction – extend up to 7 years and fine up to 10 lakhs

Provisions of section 67, section 67A

The publication of which is proved to be justified as being for the public good on the ground that such book, Pamphlet, paper, writing, drawing, painting representation or figure in the interest of science, literature, art of learning or other Objects of general concern; Which is kept or used for **bona fide** heritage or religious.

Children – means a person who has not completed the age of 18 years.

Hacking on the Cyberspace and internet:

Hacking is connected with the unauthorised access to a computer system, in which computer is the means as well as the target for committing the crime.

- data theft, fraudulent, destruct data or cause damage to the computer
- Section 66 of the IT Act, -- concerned with computer related offences.
- Under IT Act, 2000, called hacking
- Imprisonment up to 3 years or fine of 5 lakhs or both.

Other Offences – Computer resource

- Under section 66A – any person who sends by means of a computer resource or a communication device, any information which is offensive, false, email message for misleading or deceive or inconvenience.
- Imprisonment may extend up to 3 years with fine

- Facts of the case
- Issues raised in case
- Summary of the case
- **Violation of the right of privacy on cyberspace/internet**

Under Article 8, everyone has the right to respect for his private and family life, his home and his correspondence. There shall be no interference by a public authority.

- **Punishment for violation of privacy, breach of confidentiality and privacy under the IT Act**

whoever intentionally or knowingly captures, publishes or transmits the private area of any person without his or her consent.

Under section 66E, 3 years of imprisonment or fine not exceeding two lakhs.

Breach of confidentiality and privacy

On Cyber space, with the use of Internet, we provide information to others in many ways.

- Search engines – track our searches
- By using IP address
- Blogging – people post video or photos
- Instant messaging/chatting/video – in all methods can be archived, stored easily.
- Online banking – requires lot of sensitive information
- Spyware, phishing and pharming can also be used to retrieve information.

Under Section 72 of IT Act, imprisonment up to 2 years and fine of 1 lakh.

Terrorism on cyberspace/Internet

In modern times terrorism as a means and method to cause fear and undue violence against individuals, groups or countries has posed a very menacing effect and as a big challenge in this world. The causes of terrorism in this world are numerous including religious, geographical and against particular countries by one country against the other countries.

Sample Questions:

1. Discuss the 'Triple Test' for determining whether a work is obscene or not with the help of landmark case laws.
2. What are various types of 'Hackers'? Is it regulated in the Information Technology Act, 2000 as amended in 2008?
3. Explain the punishment for violation of privacy and breach of confidentiality under the Information Technology Act, 2000 as amended in 2008.

Other offences under the Information Technology Act in India

- A Brief overview of cybercrimes
- Power of the controller to give directions to certifying authorities
- Power to issue directions for interception or monitoring or decryption of information
- Power to issue directions for blocking for public access of any information
- Power to authorize to monitor and collect traffic data or information for cyber security
- Offences relating to protecting system
- The offence of misrepresentation
- Offence of publishing electronic signature certificate with false particulars

- Confiscation as penalty for contravention of the provisions of the act
- Compounding of offences under the IT Act
- Cognizance of offences and bail under the IT Act
- Punishment for abetment and attempt to commit offences under the IT Act
- Commission of offences by companies under the IT Act
- Commission of offences by companies under the IT Act
- The Power of police officer and other officers to enter and search
- Protection of action taken in a good faith
- Some amendments made under the Indian penal code by IT(Amendment) Act, 2008

Short Answer Questions

1. In the light of the present COVID-19 situation explain the contemporary offences by Intermediaries.
2. Which authority has the power to issue directions for blocking public access to information on the internet?
3. Discuss the power of police officer for investigation in the case of cybercrime as mentioned under the Information Technology Act, 2000.

The role of Electronic Evidence and miscellaneous provisions of the IT Act

- Indian Evidence Act
- Examiner of electronic evidence
- Amendments introduced in the Indian Evidence Act, 1872
- Understanding Evidentiary value of electronic Records: Section 65 A and section 65B of the Indian Evidence Act, 1872
- The appointment of national nodal agency
- Indian Computer emergency response team
- Law regarding electronic cheques and truncated cheques
- The information technology act to have overriding effect
- Power of central government to make rules under the act
- Constitution of advisory committee
- Powers of the controller and the state government to make rules
- Reasonable security practices and procedures and sensitive personal Information Rules, 2011

Short Answer Questions

1. Examine the role of Examiner of electronic evidence under the Information Technology Act, 2000 (as amended in 2008).
2. What are the amendments in the Indian Evidence Act for the legal recognition of electronic evidences in India?
3. How far Indian Computer Emergency Response Team is successful in preserving cyber security in India?
4. Explain the validity of electronic evidences with the landmark cases laws and judicial opinion.